

- 15 and 16: appear to exclude medical expenses paid by petitioner based on the total amount listed in 12.a.

10. CU14-080744 TIMOTHY P DEMARTINI et al vs. MICHAEL J DEMARTINI et al

This case involves litigation that has now spanned more than a decade and still persists. The Court issued a Judgment in this matter on September 11, 2023. In that Judgment the Court ordered as follows:

“In the event plaintiffs and/or defendant James C. DeMartini in his capacity as Trustee of the Testamentary Trust under the Will of James P. DeMartini dated December 9, 1982 desire an award of costs....” See, Judgment, pg. 23, ll. 14-16. Clearly, the Court was indicating it found these three parties were solely entitled to seek an award of costs.

Subsequently, plaintiffs Timothy and Margie DeMartini sought an award of costs. Defendant James C. DeMartini, Trustee, did not.

On October 9, 2023, the Court found Plaintiffs were the prevailing parties in this action, and, on November 20, 2023, the Court issued an Order Re Prevailing Party for Costs.

On December 18, 2023, the Court issued its Order Re Motion to tax Cost Bill resulting in an order awarding Plaintiffs costs in the total sum of \$11,433.35.

INHERENT AUTHORITY TO CORRECT ORDERS

“It is not open to question that a court has the inherent power to correct clerical errors in its records so as to make these records reflect the true facts. *People v. Schultz* (1965) 238 Cal.App.2d 804, 807, 48 Cal.Rptr. 328; *People v. Flores* (1960) 177 Cal.App.2d 610, 613, 2 Cal.Rptr. 363.) The power exists independently of statute and may be exercised in criminal as well as in civil cases. (*People v. Flores, supra*, at p. 613, 2 Cal.Rptr. 363.) The power is unaffected by the pendency of an appeal or a habeas corpus proceeding. (*In re Roberts* (1962) 200 Cal.App.2d 95, 97, 19 Cal.Rptr. 147.) The court may correct such errors on its own motion or upon the application of the parties. (*People v. Flores, supra*, at p. 613, 2 Cal.Rptr. 363.)” *In re Candelario* (1970) 3 Cal.3d 702, 705.

Thus, the Court has inherent authority to correct its rulings nunc pro tunc, including an award of costs, such that the record correctly sets forth the Court’s original intent and sets forth the truth. See, *Stewart v. Abernathy* (1944) 62 Cal.App.2d 429, 434.

Further, the Court’s ability to correct/clarify its prior order is not affected by the filing of any appeal where the amendment to a prior ruling does not affect a litigant’s substantial rights on appeal. *Stewart, supra*, 62 Cal.App.2d at 434.

Regarding the instant matter, **at no time was it or has it been** the Court’s intent to order costs paid by anyone other than defendants Michael and Renate DeMartini. These defendants have always been and still are the primary (if not sole) drivers of this litigation. But for their refusal to agree to dissolution of a partnership where the partners, by their own admission, did not trust one another and could not manage together, this litigation would not have occurred. Although

Timothy and Margie DeMartini filed the action, they did so in that there was no other manner in which to dissolve the partnership at issue. The Trustees of the Testamentary Trust under the Will of James P. DeMartini, dated December 9, 1982 were solely involved in the action due to the fact this Trust had remained on title for decades despite the fact James P. DeMartini had died and the assets of his trust had long ago been dispersed to the beneficiaries of the trust. Thus, the trust was an indispensable party to the action. Throughout this litigation, the trustees have had minimal participation. They appeared when required to do so, such as for the duration of the trial. However, for the most part, the trustees have not participated in this matter. Even their participation throughout the trial was minimal. Rather, the litigation has been almost exclusively between plaintiffs Timothy and Margie DeMartini and Defendants Michael and Renate DeMartini.

In addition, despite the award of costs having been issued almost three (3) years ago, it was not until July 27, 2026 when the parties appeared for oral argument on Plaintiffs' Motion for Disbursement of Funds that defendants Michael and Renate DeMartini raised the issue of costs being owed by other named defendants as opposed to solely owed by them. Never before has this issue been raised either orally or in writing, and it is the Court's belief, until very recently, all parties proceeded in this litigation in a fashion consistent with a belief the award of costs was to be paid solely by defendants Michael and Renate DeMartini.

Further, although defendants Michael and Renate DeMartini have filed various appeals to the Third District Court of Appeal which were consolidated, such appeals were dismissed on purely procedural grounds – failure to file an opening brief and appendix – and remittitur has issued. Moreover, although these appealing defendants have recently appealed this dismissal to the California Supreme Court, no stay has been issued by that, or any other, court. Further, even if their appeal to the Supreme Court was granted, such would merely result in their renewed ability to raise any issue on appeal they desired with the Third District Court of Appeal which could include issues related to the award of costs in this matter.

As such, the Court's correction of its prior order in no way prejudices any party.

JOINT AND SEVERAL LIABILITY FOR PAYMENT OF COSTS

As to the issue of whether defendants Michael and Renate DeMartini are jointly and severally liable for payment as opposed to each being individually liable for a portion of costs, the seminal case related to whether costs should be born jointly and severally or apportioned among multiple parties is *Acosta v. SI Corp.* (2005) 129 Cal. App. 4th 1370. From this case came what is widely recognized as the "Acosta rule". Applying that rule to the facts of this case clearly supports the fact **it is and has always been** the Court's intent defendants Michael and Renate DeMartini are liable for payment of these costs jointly and severally.

Here, Michael and Renate DeMartini, spouses, were represented by the same attorney, that attorney and now these self-represented parties have always put forth the same arguments and the same requests, filed their pleadings jointly, consistently referred and continue to refer to themselves jointly using the word "we" in their arguments and factual assertions, and even defer to one another during oral argument in their current capacity as self-represented. At no time

throughout this litigation have these two defendants ever presented as anything other than as wholly unified parties litigating for a common goal.

DECEMBER 18, 2023 ORDER CORRECTION NUNC PRO TUNC

Accordingly, and on the Court's own motion, the Court hereby clarifies and corrects its prior order of December 18, 2023 awarding costs to Plaintiffs to make abundantly clear what it believed was clear as early as September 11, 2023, the costs awarded to plaintiffs Timothy DeMartini and Margie DeMartini in the total sum of \$11,433.35 are to be paid solely by defendants Michael DeMartini and Renate DeMartini, and such obligation is a joint and several obligation of these two defendants. Further, such amendment and correction is effective *nunc pro tunc* to December 18, 2023.

PAYMENT OF COSTS FROM FUNDS HELD IN COURT'S TRUST ACCOUNT

Plaintiffs argue the filing of a motion for a charging order in Federal Court has created a lien on the debtor-partner's interests pursuant to Code of Civil Procedure section 708.320. The Court disagrees.

Code of Civil Procedure section 708.320, subdivision (a) provides: "A lien on a judgment debtor's interest in a partnership or limited liability company is created by service of a notice of motion for a charging order on the judgment debtor *and* on either of the following: [¶] (1) All partners or the partnership. [¶] (2) All members of the limited liability company." However, such is applicable to a lien on a judgment debtor's interest in an existing partnership. *Litke O'Farrell, LLC v. Tipton* (2012) 204 Cal.App.4th 1178, 1185. Pursuant to Corporations Code section 15907.03(a), "On application to a court of competent jurisdiction by any judgment creditor of a partner or transferee, the court may charge the transferable interest of the judgment debtor....". Corp. Code § 15907.03; see also *Crocker Nat. Bank v. Perroton* (1989) 208 Cal.App.3d 1, 9-10 (stating "a charging order cannot grant the creditor a greater interest in the partnership than that of the debtor partner at the time of the order").

In the instant action, the only partnership the Court found to be in existence in relation to the cause of action to be tried in Superior Court was that known as DeMartini and Sons which partnership operated to manage the rentals at 12731 Loma Rica Drive in Grass Valley, Nevada County, California was dissolved by the Court's September 11, 2023 Judgment. Therefore, because no partnership existed at the time of the motions for charging order, no lien on defendants Michael and Renate DeMartini's interest in the judgment was created.

As previously discussed, the pending appeal does not stay disbursement of the funds, because Plaintiffs seek the payment of money and no undertaking has been posted. See Code Civ. Proc. §§ 916(a), (b); 917.1(a)(1). Additionally, the Court knows of no stay issued by the California Supreme Court. Accordingly, there is no stay as to the distribution of partnership funds in accordance with the September 11, 2023 Statement of Decision or the December 18, 2023 Order Re Motion to Tax Costs.

Based on the above, the Court orders the remaining funds held in the Court's trust account be disbursed to Michael DeMartini less the amount of costs awarded in this matter of \$11,433.35

which amount shall be paid to plaintiffs Timothy DeMartini and Margie DeMartini as and for satisfaction of the costs award in full.

Plaintiffs shall prepare the order after hearing.

11. FL0000421 Cohen, Micah v. Cohen, Philip Alexander

Appearances required. The Court has not received a proposed judgment on reserved issues as previously ordered to be submitted by September 1, 2026. Parties and counsel shall appear to show cause as to why sanctions should not issue related to same. The Court is inclined to sanction each party and counsel for Petitioner the sum of \$500.00 each for the failure to timely submit a judgment setting forth the terms agreed upon at the judicially supervised settlement conference held on April 3 and 16, 2025. It has not been well over a year since the parties reached agreements on many issues in this matter which were to be memorialized in a proposed judgment by counsel for Petitioner no later than May 1, 2026 and reviewed and executed no later than May 11, 2025 by Respondent. The Court has been more than patient in this regard. The Court is inclined to sanction the parties and counsel and prepare the judgment on its own.